



File No.: EXP202400728

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on October 4, 2022. The complaint is directed against the GENERAL DIRECTORATE OF POLICE with NIF S2816015H (hereinafter, the POLICE). The reasons for the complaint are as follows: The claimant states that he is a civil servant, performing his duties as ***POSITION.1 of the Police Complex in ***LOCATION.1, in ***CCAA.1, and that, on February 28, 2022, the Secretary General of the Superior Police Headquarters of ***CCAA.1 stated that he had become aware that the claimant had not reported to his workplace on that date.

He points out that this Secretary conducted a review of images from the surveillance system of the facilities and claims that this system is not marked with the required signs indicating a monitored area, nor has there been prior information provided to the staff working in the facilities.

Following the incident, a disciplinary file was initiated against the claimant, which resulted in a sanction against him.

The claimant asserts that, in addition to the lack of information to the workers, the established protocols regarding access to the content of the recordings were not followed, as they were accessed by the Secretary General of the Superior Headquarters of ***CCAA.1 without a motivated resolution, indicating that the right of access to the aforementioned images was curtailed for the claimant within the disciplinary procedure; since, after requesting them, only a copy of the file was provided, except for the corresponding images.

He also states that the images from the system have been retained for a period exceeding the legally established month.

Along with the complaint, he submits a copy of the content of the disciplinary file and writings sent by the claimant within it.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the POLICE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on November 14, 2022, as stated in the certificate in the file.

On December 13, 2022, this Agency received a report with photographs of the location and angle of view of the cameras, as well as the location of the informational signs.

THIRD: On January 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them,

subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

Article 4 of the GDPR, under the heading "Definitions," provides the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

Consequently, it is evident that the physical image of a person, in accordance with Article 4.1 of the GDPR, is personal data and its protection, therefore, is the subject of this regulation.

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Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

2) "processing": any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or modification, extraction, consultation, use, communication by transmission, dissemination, or any other form of enabling access, comparison or interconnection, restriction, erasure, or destruction.

7) "data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if Union or Member State law determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by Union or Member State law.

In this regard, it should be noted that the POLICE is responsible for the processing of personal data and, therefore, determines the purposes and means of processing personal data.

III

Article 6.1 of the GDPR

Article 6 of the GDPR establishes, regarding the lawfulness of processing personal data obtained from users, that the processing of such data shall be lawful only if at least one of the conditions set out in its first paragraph is met, among which is, in its paragraph a): "that the data subject has given consent to the processing of their personal data for one or more specific purposes (...)"

Regarding the processing of data based on the consent of the data subject, Article 7 of the GDPR indicates that the data controller must be able to demonstrate that the data subject has consented to the processing of their personal data. If consent is given in the context of a written declaration that also refers to other matters, it must be ensured that the request for consent is clearly distinguishable from other matters and presented in an intelligible, easily accessible manner, using clear and plain language. Additionally, the data subject must be provided with further information, including, among others, what categories of data will be processed, the purposes for which consent is requested, and the right to withdraw consent at any time.

Regarding the manner of obtaining the consent of the data subject for the processing in question, Recital 32 of the GDPR states that consent "must be given by a clear affirmative act that reflects the data subject's free, specific, informed, and unambiguous indication of their wishes to accept the processing of personal data concerning them" and that "silence, pre-ticked boxes, or inactivity...

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"must not constitute consent." Furthermore, it is required that consent be granted "for all processing activities carried out for the same or the same purposes. When processing has multiple purposes, consent must be given for all of them." Finally, it establishes that "if the consent of the data subject is to

be given as a result of a request made by electronic means, the request must be clear, concise, and not unduly disrupt the use of the service for which it is provided."

For its part, Article 12.1 of the aforementioned GDPR states, regarding the requirements that the information provided by the data controller to the data subjects when requesting consent must meet, the following: "1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means (...)."

Articles 13 and 14 of the GDPR detail the information that must be provided to the data subject when the data is collected directly from them (Art. 13), or through other means (Art. 14). In any case, the obligation to inform the data subjects about the circumstances related to the processing of their data falls on the data controller: a) If the data is obtained directly from the data subject, the information must be made available at the time the data is requested, prior to collection or registration; and b) if it is not obtained from the data subject, they must be informed within one month from the time the personal data was obtained, or before or during the first communication with the data subject, or before the data (if applicable) has been communicated to other recipients.

Finally, it is worth mentioning that Article 89 of the LOPDGDD refers to the "Right to privacy against the use of video surveillance and sound recording devices in the workplace" and establishes that "1. Employers may process images obtained through camera or video camera systems for the exercise of the control functions of workers or public employees provided for, respectively, in Article 20.3 of the Workers' Statute and in public function legislation, as long as these functions are exercised within their legal framework and with the inherent limits thereof. Employers must inform, in advance, and in an express, clear, and concise manner, the workers or public employees and, where applicable, their representatives, about this measure.

In the event that a flagrant act of unlawful conduct by workers or public employees has been captured, the duty to inform shall be deemed fulfilled when at least the device referred to in Article 22.4 of this organic law exists."

2. Under no circumstances shall the installation of sound recording systems or video surveillance in areas designated for the rest or recreation of workers or public employees, such as changing rooms, restrooms, dining rooms, and similar places, be permitted.

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3. The use of systems similar to those referred to in the previous sections for the recording of sounds in the workplace will only be permitted when the risks to the safety of facilities, property, and individuals arising from the activities carried out in the workplace are relevant, and always respecting the principles of proportionality, minimal intervention, and the guarantees provided in the previous sections. The deletion of sounds recorded by these recording systems will be carried out in accordance with the provisions of section 3 of Article 22 of this law."

Article 22.4 of the LOPDGDD states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at a minimum, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device" (the bold type belongs to this agency). In this case, it is recorded that the Secretary General of the Superior Police Headquarters of

***CCAA.1, through the viewing of images from the surveillance system of the facilities, stated that he had become aware that the claimant had not reported to their workplace on that date. Following the incident, disciplinary proceedings were initiated against the claimant, which resulted in a sanction against the claimant.

In this regard, it is worth citing the Judgment of the Supreme Court (Contentious-Administrative Chamber) of 26/04/21 Rec. 4645/2019.

“Now, the general rule of consent finds as an exception the necessity of maintaining and fulfilling the service relationship that unfolds over the obligations derived from the specific regime of public officials, that is, from an administrative relationship that requires ensuring compliance with their obligations. Always taking into account proportionality, which is essential in this matter, in connection with the principle that data can only be collected for processing when they are adequate, relevant, and not excessive in relation to the determined, explicit, and legitimate scope and purposes for which they have been obtained.”

“And in this case, indeed, the proportionality judgment is surpassed because there is a legitimate objective in the use of the data, as a repeated failure to comply with the duties of a public official is evidenced, with the consequent discredit that it causes to the image of the Public Administration.” Thus, in STS 1564/2021 it is declared that “It was therefore not necessary to obtain the unequivocal consent of the recurring official, nor of each and every one of the officials providing their services in that building, to carry out the recording and processing of images at the entrance and exit of a building with a large number of officials, installed precisely to safeguard the security and surveillance of the property in which the Special Delegation of the Tax Agency in Madrid is located. The Administration, in the case examined, has not proceeded to install new and specific cameras.”

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surveillance video system to carry out specific recordings of the recurring official, but rather has made use of the cameras that were already installed to carry out those security and surveillance tasks in the general control of compliance with working conditions. And through the aforementioned cameras, the activity displayed by the now-recurring official to evade controls over compliance with working hours is observed, attempting to circumvent such control regarding clocking in and out, and also substituting another official in that function.

On the other hand, in STC 39/2016, the High Court has declared that the placement of the "informative badge required by Instruction 1/2006, of November 8, of the Spanish Agency for Data Protection, on the processing of personal data for surveillance purposes through camera or video camera systems... is sufficient.

The recurring worker in protection considers that Article 18.4 of the Constitution has been violated because, although she was aware of the existence of the surveillance cameras, she had not been previously informed of it in the terms of the doctrine contained in STC 29/2013, that is, in an express, precise, clear, and unequivocal manner to the workers about the capture of images, its purpose of controlling work activity, and its possible use for the imposition of disciplinary sanctions for breaches of the employment contract. The core of the problem thus lies in determining whether general information is sufficient or, on the contrary, specific information must exist. Against the thesis established in STC 29/2013 regarding the requirement for specific information about the purpose of controlling work activity and possible use for the imposition of sanctions, the Constitutional Court declares that it is enough for workers to have generic knowledge of the existence of video cameras through the informative badge, which, in accordance with the provisions of Instruction 1/2006 of the Spanish Agency for Data Protection (AEPD), must contain a reference to the LOPD, the purpose for which the data is processed ("Surveillance Zone"), and the identification of the responsible party before whom the rights of Article 15 and following of the LOPD can be exercised. And having established the above, it resolves that in the case under review there was no violation of Article 18.4 of the Constitution, because the worker could know, through the corresponding badge placed in the shop window of the

store where she worked, the existence of the cameras and the purpose for which they had been installed.”

In compliance with this obligation, the responding party has demonstrated that it has the corresponding badges in a visible area, which were visible to the claimant, being informed of the presence of the cameras and assuming, in their case, that they could be recorded by them.

According to what is expressed in the aforementioned Judgment, the obligation of prior information has been fulfilled in this case, since compliance with the specific information requirements through the badge is sufficient for these purposes, allowing the worker (public employee) to know that a video surveillance control system had been installed in the company and the purpose for which the cameras were installed ("surveillance zone").

Additionally, it should be noted that public servants must be held to a standard of exemplary conduct, which involves strict compliance with internal instructions that they may have received in the performance of their duties.

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Therefore, the use of images from the video surveillance system is not considered excessive in relation to the intended purpose, which is framed within the task of monitoring compliance with the obligations of public employees at the Police Complex in the facilities, who must, in the exercise of their duties, "adjust their actions to the principles of loyalty and good faith" that are required of all public employees (Article 53.3 of the Basic Statute of Public Employees).

On the other hand, the claimant states in their complaint that "...the instruction agreed to provide a copy of the file, with the exception of copies of the recorded footage, under penalty of violating the specific regulations set forth in L.O. 3/2018 on Personal Data Protection and the guarantee of digital rights (curtailing the right of access and cancellation of the interested party) and denying the requested testimonial evidence as unnecessary..."; however, it is evident that the failure to provide a copy of the recorded footage along with the delivery of the file copy, as well as the inadmissibility of the proposed evidence, can only be challenged within the disciplinary procedure being conducted.

The claimant also asserts that the extraction of images from the video recording systems installed in the police facilities was not carried out in accordance with the established protocols. In this regard, it should be noted that the Secretary General is responsible and competent to order the extraction of such images, through the telecommunications department, with the technical officials of that department being the ones who accessed and extracted the files from the system, with these operations being audited, as evidenced in the file.

Finally, regarding the retention period of the images, it should be noted that their retention is justified when they are necessary for the defense of the interests of the data controller, as well as to guarantee the fundamental right to effective judicial protection.

IV

Therefore, based on the indications in the previous paragraphs, no evidence has been found to support the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute an infringement of data protection regulations due to the viewing of images from the video surveillance system of the facilities as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

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SECOND: TO NOTIFY this resolution to the DIRECTORATE GENERAL OF THE POLICE and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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